24STCV09770 24STCV09770

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C09%2F01%2F2026

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Case Number: 24STCV09770 Hearing Date: September 1, 2026 Dept: 311

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

24STCV09770

TYESA HARVEY, AN INDIVIDUAL vs VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION

September 1, 2026

8:30 AM

NATURE OF PROCEEDINGS: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d).

RULING:

The Court denies the Motion,
considering completed payment of the agreed amount.

Defendant to give notice.

I.
BACKGROUND

On April 18, 2022024, TYESA
HARVEY (Plaintiff) filed a Lemon Law Complaint, of nine pages, against VOLKSWAGEN GROUP OF AMERICA, INC. (Defendant), alleging two warranty-related Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8).

Plaintiff alleges
purchasing, with warranty provisions, a 2020 Audi Q3 that Defendant manufactured, which had defects, including, “(a) a defective sunroof causing water leakage; (b) faulty wind deflectors causing water leakage; (c) the illumination of the ‘Tire Pressure’ warning light; and (d) interior water damage.” (Complaint, ¶ 10.) Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On July 23, 2026, Plaintiff
filed the Motion for an award of $55,114.00 in attorneys’ fees, costs, and expenses, as the prevailing party, pursuant to Defendant’s Offer to Compromise, the Song Beverly Consumer Warranty Act (Civil Code §1794(d)), and Code of Civil Procedure Section 664.6. The requested amounts are (1) $30,079.50 attorneys’ fees, (2) a 0.1 lodestar multiplier of $3007.95, and (3) $2,238.13 in costs.

Defendant opposes, contending
that Plaintiff already was paid the agreed $5,000.00 sum, and otherwise the requested amount is not justified in this simple case, or for the merely anticipated sums.

II.
LEGAL STANDARD

As to Song–Beverly
warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).)

"[V]erified time
statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State Etc. (2005) 132 Cal.App.4th 359, 396 [deciding it was an abuse of discretion to completely disregard counsel's time records based upon finding numerous instances of overlapping work].)

" 'In challenging
attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

Anticipated attorneys'
fees estimated before they are incurred, which are based upon substantial evidence, are awardable, unless there is opposing evidence supporting judges' findings that the fees are speculative or incredible. (Menezes v. McDaniel (2019) 44 Cal.App.5th 340, 349.)

Judges are not required
to award the lower market rate of attorneys' fees, and may have discretion to determine that the actual rate charged was reasonable. (Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.)

Courts are not required
to include a multiplier fee enhancement, but may consider, in their discretion, novelty and difficulty of the questions, skill displayed, extent the case precluded other employment, and the contingent nature of the fee award. (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 248 ["court went further as to the multiplier issue, emphasizing that this was 'not a complicated case,' and the 'request for a multiplier was specious.' "].)

"[A]n abuse of discretion transpires if 'the trial court exceeded the bounds of reason' in making its award of attorney fees." (Maughan v. Google Technology, Inc. (2006) 143 Cal.App.4th 1242, 1250.)

III.

ANALYSIS

Plaintiff contends that statutory attorneys' fees are available, after Defendant's failure to timely pay $5,000.00 for fees and costs within the section 998 offer's 60-day deadline of June 15, 2026. (Reply, 2:1-16.) Plaintiff further advocates all amounts as being recoverable, especially considering that Defendant failed to object to specific items.

Defendant responds that Plaintiff was required to file the fees motion by June 15, 2026 to request amounts to be awarded by the Court beyond the $5,000.00 agreed upon, and, as such, the Motion is moot. Additionally, Defendant maintains that the amounts are unreasonable for the run-of-the-mill Lemon Law case, settled without completing discovery or doing trial preparation. Also, Defendant contends that the hourly rates ranging from $525.00 to $695.00 are unreasonable rates in the community. Further, Defendant is against the multiplier for simple, routine matters, notwithstanding contingency fee agreements in Lemon Law cases. Finally, Defendant provides a table of multiple duplicate entries and unreasonable billings, at page 13 of the Opposition.

General contract law applies to section 998 offers and acceptances where it does not conflict with that section or defeat its purpose. (Madrigal v. Hyundai Motor Am. (2023) 90 Cal.App.5th 385, 408.) In determining whether a contract provides for a party to recover attorney fees in particular situation, judges apply the usual rules of contract interpretation, and where parties have offered no parol evidence, appellate courts will make the determination de novo. (Gil v. Mansano (2004) 121 Cal.App.4th 739, 743.)

"[A] condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises." (Platt Pac. v. Andelson (1993) 6 Cal.4th 307, 313 [citing, e.g., Civ. Code, § 1436]. Accord Barroso v. Ocwen

Loan Servicing, LLC (2012) 208 Cal.App.4th 1001, 1010.)

An offer under Code of Civil Procedure section 998 properly may provide for attorney's fees, expenses and costs in an agreed amount to be agreed or to be determined by the Court pursuant to Civil Code Section 1794(d). (Zavala v. Hyundai Motor Am. (2024) 107 Cal.App.5th 458, 465, fn. 4. Cf. Ayers v. FCA US, LLC (2024) 99 Cal.App.5th 1280, 1292 [“The parties failed to agree on the amount of Civil Code section 1794, subdivision (d) costs, expenses and attorney fees payable to plaintiff. Accordingly, plaintiff filed a motion to determine these amounts,…”].)

Importantly, where parties agreed to a particular allocation of fees and costs as part of their settlement agreement, then the courts are not authorized to award differently. (Gorobets v. Jaguar Land Rover N. Am., LLC (2026) _ Cal.5th _, _, fn. 15, 2026 WL 2267423, at *11.)

The instant attorneys’ fees paragraph places a 60-day deadline upon Plaintiff to file a Motion for Attorneys’ fees to avoid the $5,000.00 sum, and no deadline as to Defendant’s payment of $5,000.00 in attorneys’ fees and costs, as is shown by the following quote:

“Defendant will pay Plaintiff’s attorney fees and litigation costs in this action as follows: a) No later than 60 days after all payments have been made pursuant to paragraph 5, below, Plaintiff will file a noticed motion pursuant to Cal. Civil Code § 1794(d) for payment of the aggregate amount of Plaintiff’s costs and expenses – including Plaintiff’s attorney's fees based on actual time expended – determined by the Court to have been reasonably incurred in connection with the commencement and prosecution of this action; or, b) If Plaintiff does not file a noticed motion pursuant to Cal. Civil Code § 1794(d) within 60 days after all payments have been made pursuant to paragraph 5, below, Defendant will pay Plaintiff the total amount of $5,000.00 as payment in full for the aggregate amount of Plaintiff’s attorney fees and litigation costs incurred in connection with the commencement and prosecution of this action.…”

(Oviya Sivasangary

Declaration, filed August 19, 2026, Exhibit B ("Defendant Volkswagen Group of America, Inc.'s Offer to Compromise"), ¶ 2.) (Underscoring added.)

Here, Plaintiff had not performed the condition precedent for getting attorneys' fees and costs of more than the $5,000.00 already paid on July 16, 2026. Specifically, the Motion was filed on July 23, 2026, more than 60 days after Defendant paid the settlement amount on April 15, 2026. (See ibid., ¶¶ 6-9.)

Further, given those binding provisions of the settlement contract, the Court need not further apply law applicable to the Song-Beverly Consumer Warranty Act.

IV.
CONCLUSION

Accordingly, the Court denies the Motion, pursuant to the settlement terms.